PURCHASE ORDER

CLOOS
Weld your way.

Invoice To
CLOOS INDIA WELDING TECHNOLOGY PVT LTD
Ground and First Floor, Plot No. 114/1/3, MIDC,
General Block, Bhosari, Pune- 411026
MSME Reg No. MH26E0154651
Maharashtra - 411026, India
GSTIN/UIN: 27AAECC5526E1ZV
State Name : Maharashtra, Code : 27
CIN: U74140PN2011FTC169703

Despatch To
JCB India Limited. (Pune Unit)
(Fabrication - BusinessUnit) Plot No A & B, Talegaon Floriculture & Industrial Park, Vil Ambi Navlakh Umbre, Taluka - Maval, 410507, IN,MH, Maharashtra - 410507, India
GSTIN/UIN : 27AAACE0078P1ZD
State Name : Maharashtra, Code : 27

Supplier
NIHVA TECHNOLOGIES PVT. LTD.
8/1, Coromant Hsg. Society, Sector 27,
Pradhikaran Nigdi, Pune - 411044,
Maharashtra - 411044, India
GSTIN/UIN : 27AAECN0437H1ZM
State Name : Maharashtra, Code : 27
Contact person : Mr.Bhavin Jain
Contact : +91 85510 92333

Voucher No.	Dated
20213032	**21-Aug-2020**
	Mode/Terms of Payment
Supplier's Ref./Order No.	Other Reference(s)
SQT/19-20/2474R2 dtd 25.03.20	**Mr.Jayram Epilli/ +91 70207 80534**
Despatch through	Destination
By Surface	**JCB Pune, Talegaon Plant**

Terms of Delivery

1. Installation & Commissioning: In suppliers scope, included in quoted price.
2. Packaging: In suppliers scope, included in quoted price.
3. Delivery Date: Design work to be started immediately for conducting DAP, Post DAP 4 Weeks until delivery at final site.
4. Warranty: 12th Months from successful sign-off and handover.
-
Payment Terms:
1. 40% Advance of Basic Amount immediately after release of PO
2. 40% + Full Taxes at the time of dispatch and inspection at suppliers place
3. Balance 20% of Basic Amount to be released after successful trails completion of work on site with final signoff.

Sl No.	Description of Goods	HSN/SAC	Quantity	Rate	per	Amount
1	**MOTORISED SINGLE LEAF SLIDING GATE** *with Clear Width of 9500mm and Clear Height of 1800mm*	7308	**2 Sets**	2,95,000.00	Sets	**5,90,000.00**
	CGST Input @ 9%			*9*	%	**53,100.00**
	SGST Input @ 9%			*9*	%	**53,100.00**
	Total		**2 Sets**			**6,96,200.00 ₹**

Amount Chargeable (in words) *E. & O.E*
Six Lakh Ninety Six Thousand Two Hundred INR Only

Remarks:
For detail see Attached Annexure- I with this PO.
Company's PAN : **AAECC5526E**

for CLOOS INDIA WELDING TECHNOLOGY PVT LTD

Authorised Signatory

This is a Computer Generated Document no signature required.

Annexure- I

Scope of Work:

1. As per RFQ, system layout submitted and subsequent meetings in Cloos Office.

2. Design, concept and drawing to be shared by Nihva for approval of Cloos prior to manufacturing and procurement, all technicalities will be finalized and clarified during DAP.

3. Mr. Jayram Epilli; +91 8793286427 will be point of contact from Cloos for all technical clarification and tracking progress of project.

4. Documentation –Design, drawings, inspection reports, quality check certificate, bill of material as part of standard documentation to be submitted by Nihva.

We agreed on the following payment terms:

1. 40% Advance of Basic Amount immediately after release of PO
2. 40% + Full Taxes at the time of dispatch and inspection at suppliers place
3. Balance 20% of Basic Amount to be released after successful trails and completion of work on site with final signoff.

Price Basis: DAP, Taxes extra.

HSN Code: To be shared by Nihva.

Delivery Date: Design work to be started immediately for conducting DAP, Post DAP 4 Weeks until delivery at final site.

Warranty: 12th Months from successful sign-off and handover.

Installation & Commissioning: In suppliers scope, included in quoted price.

Packaging: In suppliers scope, included in quoted price.

Transportation & Insurance: In suppliers scope, included in quoted price.

General Terms and Condition – Cloos India Welding Technology Pvt. Ltd.

Weld your way.

1. Acknowledgement and Description of the products.

- These purchase order terms and conditions shall apply to and shall form part of any purchase order between M/s Cloos India Welding Technology Pvt Ltd Hereafter referred as 'Buyer' and Supplier hereafter referred as 'Seller' for the supply of seller's Products.
- If the order is issued or arises pursuant to an agreement in writing between Buyer and Seller in respect of Products, the terms of that agreement shall govern in the event of any inconsistency.
- Products shall mean the products to be supplied by the seller, as mentioned in this order.
- The supplier shall send a confirmation of acceptance of the order within seven days of receipt of the order failing which acceptance of the order will be taken for granted. Acceptance of this order will constitute the contract of supply.

2. Prices, Taxes and Payment.

- The price specified herein, unless otherwise expressly stated, includes:
  i) GST
  ii) All charges for labelling, packaging, loading, storage and insurance.
- Unless otherwise stated or agreed, prices are in Indian rupees.
- Subject to the further provisions of these :-
  i)Undisputed invoices are due for payment as per agreed payment terms mentioned in purchase order.
- Seller represents and warrants that the prices and payment terms under this order are not less favourable to Buyer than those currently extended to any other customer for the same or substantially similar products in similar quantities. If seller reduces its prices for any Product before this order is completed, seller shall reduce the prices under this order accordingly.
- Buyer may set off any amount owing at any time from seller to buyer or any of its affiliates against any amount payable at any time for Buyer
- Supplier shall comply with all the necessary statutory compliances including but not limited to providing GST invoices or other documentation as per GST law relating to the Supply/Services under this PO, uploading the details of the invoice, payment of taxes, timely filing of valid statutory returns for the tax period on the GST portal.
- In case the Input Tax Credit of GST is denied or demand is recovered from CIWTPL on account of any act of the Supplier, including but not limited to non-payment of GST charged and recovered, non-filing of Returns, non-uploading of valid invoices raised on CIWTPL in the Returns etc., the Supplier shall indemnify CIWTPL in respect of all claims of tax, penalty and/or interest, loss, damages, costs, expenses and liability that may arise due to such non-compliance

3. Shipping, Packing & Forwarding.

- All products shall be suitably prepared and packed for shipment, and seller shall mark the number of the order on each container and enclose an itemized packing slip with such number in each container. If seller fails to enclose an itemized packing slip in each container, Buyers determination of count or weight shall be conclusive. Seller shall mail invoices in duplicate and shipping documents to buyer for each shipment on the day such shipment is made.
- Consignment must be booked strictly in accordance with the delivery terms as stated in this order. No charges will be allowed for packing, crating, and transportation unless stated in this Order.
- Seller must ensure that proper surface treatment is carried out or rust preventive solution is applied to avoid products getting affected by rust during transit.
- Adequate protective packaging must be ensured by the seller to avoid any transit damages both physical and due to rains.
- Copies of delivery challans, Invoice, Ewaybill, Excise gate pass must accompany the consignment. Any consignment losses, demurrage or any other extra cost arising due to non-compliance, will be entirely sellers responsibility.
- All consignments should be billed in the name of "CLOOS INDIA WELDING TECHNOLOGY PRIVATE LIMITED" unless otherwise specified.

4. Delivery-Risk of Lost & Title.

- Timely Delivery is the essence of the Order. Deliveries shall be made both quantities and at the times specified in this order or in buyer's schedules as may be specified from time to time. Buyer shall not be required to make payment for the products delivered to buyer are in excess of quantities specified in this order. Buyer may reject any deliveries, either in full or in part, made after or before the specified delivery date.
- In the event of failure of seller to deliver or dispatch the products within the stipulated date/period in this order, or in the event of breach of any of the terms and conditions mentioned in this order, Buyer will have the right to purchase the products from elsewhere after due notice shall be provided to the seller at the risk and cost of the seller. It is mentioned clearly that, in the event of failure of seller as detailed above, the cost of risk purchase exercise may be recovered from the invoices against any other deliveries pending with Buyer.
- At the time of delivery, if the prevailing price of the product specified in this order goes down to a price lower than the prices mentioned in this order, then the delivery in this order shall be made at such lower prevailing prices. Unless provided otherwise in this order, all products shall be sold F.O.R destination. Seller shall be responsible for and break the risk of any loss or damage to the products until received by the Buyer.
- Title to the products shall not pass from seller to Buyer until Buyer's final acceptance of the products. Seller assumes all risk of loss of or damage to the products prior to acceptance hereof by Buyer.

5. Invoicing.

- Invoices shall be mailed immediately after shipment of products to the address as mentioned shown on the face of the order. Invoices are to be submitted in Triplicate. Original Invoice or Delivery Challan as specified must accompany along with consignment.

6. Warranties of Seller.

- Seller expressly warrants that all Products covered by this order
  i) Conform to this order, specifications, drawings, samples, and descriptions furnished to or by the Buyer.
  ii) Are merchantable, of good material and workmanship, and free from defect in design and performance,
  iii) Seller warrants that all products or materials provided under this order shall be free of all liens and encumbrances, and that seller has good and merchantable title to some,
  iv) Are fit and sufficient for the particular purpose intended by buyer.
  v) Shall inure to the benefit of both Buyer and Buyers customers. Buyer's customer shall include its direct and indirect customers such as direct sale end- users, distributors and retailers purchasing buyer's product for sale end to -users. All warranties provided under this order shall survive final acceptance and payment. Payment for, Inspection of, or receipt of products shall not constitute acceptance of the products or a waiver of any breach of warranty.

7. Quality and Design of the Products.

- Products delivered in this order, shall be of new material and sellers or manufacturer's latest design and workmanship. No used or second hand material, equipment or component whatsoever shall be furnished or incorporated into any products furnished hereunder, unless otherwise specified in writing by buyer.
- Deliveries must confirm to latest drawings, technical specifications informed in writing to seller from time to time.

8. Inspection and Rejection of Products.

- Seller must ensure through inspection of the products before dispatch and only products confirming to the drawings, technical specifications as specified in this Order, should be dispatched to the Buyer.

- Buyer shall have the right to inspect all products anytime after actual receipt of the products at Buyer's place of business and to reject any or all of such products which are, in Buyers sole judgement, non-conforming. Use of a portion of the products for the purpose of testing shall not constitute an acceptance of the products.
- All deliveries of the products will be subject to through inspection of the quality assurance department of the buyer and their opinion shall be final and binding. Test certificate/Inspection report should accompany every batch of delivery.
- Raw material defect exposed after machining particularly in case of casting, forging, moulding, bar stocks, etc, will be considered as seller's defect and shall be returned to the seller. Additional cost incurred by the buyer, shall be debited to seller's account.
- Buyer shall not be obligated, however, to test or reject any product, and buyer's inspection of, or failure to inspect or reject, any product shall not affect any rights of buyer under this order. Rejected products may be held and if seller so requests may be returned to seller, at sellers sole risk and expense and, in addition to its other rights, buyer may cancel this order and may recover so much of the price as has been paid and may charge seller all expenses of inspection and return, including unpacking, examining, repackaging and shipment. Seller shall be given a reasonable opportunity to inspect the damaged products at its own cost within a period of 7 days from date of notification of rejection of nonconforming or defective products. Seller shall not replace rejected products without the written consent of the buyer.
- All rejected products will be stored by the buyer at seller's costs and risk for a period of 7 days from the date of such information given to seller. The seller shall arrange to lift such rejected products within the said period of 7 days, failing which buyer shall be entitled to dispose-off the products, as it may deem fit and proper, without any obligations to the seller.

9. Changes.

- Buyer at any time in writing may make changes in the drawings, designs and specifications of the products or the products or otherwise change the scope of the work covered by this order, including the method of packing and shipping, the place of delivery, shipping instructions, and quantity or delivery schedules. Seller agrees to promptly adhere to such changes, without any extra costs to the buyer. Nothing contained in this order shall relieve or excuse seller from proceeding without delay in performing this order as changed. Seller shall not make any change in design, processing, packing, shipping, or place of delivery without Buyer's prior written approval.

10. Termination for convenience.

- In addition to any provisions for termination here under, Buyer may terminate all or any part of this order without cause and at any time written notice to seller. In the event of such termination seller shall immediately stop, and cause its suppliers and sub contractors to stop, all work and deliveries under this order, with the goal of minimizing the cost of termination. No amount for anticipated profit on work not performed or on un finished products will be recoverable by seller.

11. Termination for cause.

- Buyer may, by 30 days written notice to seller, terminate this order, in whole or in part, for default if:
  (i) Seller fails to perform in accordance with any requirement of this order or fails to make sufficient progress thereby endangering the timely performance of this order.
  (ii) Repudiates or breaches any of the terms of this order, including seller's warranties.
  (iii) Seller becomes insolvent, has commenced against it or proposes to commence any bankruptcy, reorganization or insolvency proceeding or other proceeding under any central, state or other law for the relief of debtors.
  (iv) Any receiver, trustee or custodian is appointed to take possession of all or any substantial portion of the assets of seller. Any such termination shall be at no cost to Buyer except for completed products delivered and accepted by buyer prior to such termination, and seller repay to buyer any progress payments made in excess thereof. In the event of termination pursuant to this section, Buyer may procure or otherwise obtain, upon such terms and in such manner as buyer may deem appropriate, products not provided to buyer hereunder, and seller shall be liable to buyer for any damages arising there from, including attorneys fees or other professional fees and excess costs incurred by buyer, in obtaining such substituted products.

12. Non-Disclosure of information, Designs and Data.

- Seller shall keep confidential, during the existence of this order or during the tenure of the agreement as well as after, the features of any equipment, tooling, patterns, designs, drawings, processes, engineering and business data and other technical and proprietary information furnished by Buyer and use such items only in production of deliveries under this order from buyer, unless buyer's written consent is first obtained. Upon termination or completion of this order, seller shall return all such items to buyer or make other disposition as directed by Buyer.
- The item manufactured by the supplier with the help of technical designs and data furnished by the company must not be sold or divulged to any other party/open market

13. Infringement.

- Seller warrants that all work, materials, services, equipment, parts and other items provided by seller pursuant to this order, which are not of buyers design, shall be free from claims of infringement of third party intellectual property rights and that any use or sale of such items by buyer or any of buyer's customers shall be free from any claims of infringement. seller shall indemnify and save buyer, and its customers harmless from any and all expenses, liability, and loss of any kind (including all costs and expenses including actual attorneys' fees and costs) arising out of claims, suits, or actions alleging such infringement, which claims, suits, or actions seller, hereby, agrees to defend, at seller's expense, if requested to do so by buyer. Seller may replace or modify infringing items, acceptable to buyer of substantially the same form, fit, and functions so as to remove the source of infringement and seller's obligations under this order including those contained in section 6 and in this section 13 shall apply to the replacement and modified items.

14. Indemnification and Insurance.

- Seller shall indemnify, defend and hold harmless Buyer, its agents, employees, customers and users of its and their products against any breach by seller of any warranty, representation or covenant contained in this order and against any and all suits, actions or proceedings, at law or in equity and from any and all claims, demands, losses, judgments, damages, costs, expenses, or liabilities, including reasonable attorneys fees, resulting from the death or injury to any person or damage to any property arising out of or in any way connected with the performance of this contract by seller or the products provided here under, or with respect to matters and allegations that the products are defective, unfit or unsafe, or that the products do not meet applicable laws or regulations, even if the loss results from the, concurrent or partial negligence of Buyer. At buyer's request, seller shall defend such claims or suits at seller's expense by reputable counsel satisfactory to buyer.
- It shall be responsibility of the seller to arrange insurance of the products during the transit. The Buyer agrees to furnish all such information as may be required by the seller to effect the aforesaid insurance. Seller shall, at its expense, maintain insurance coverage in amounts satisfactory to buyer for workers compensation and property damage or similar insurance policy as may be available in India. Seller shall furnish Buyer with certificates setting forth the amounts of coverage, policy number and expiration date.

15. Force Majeure.

- Neither party shall be liable for a failure to perform that arise from causes or events beyond its reasonable control and without its fault or negligence, including but not limited to acts of god or public enemy, fires, riots, wars, sabotage, acts of terrorism, labour problems. The affected party shall give written notice of such delay, including the

anticipated duration thereof, to the other party within ten (10) days of beginning of the delay.

- If seller is the affected party, seller shall take all reasonable action, including, but not limited to, utilizing temporary production facilities or a temporary workplace, or moving existing tooling to third party production facilities in order to ensure that the supply of products meets the requirements of this order.

- During the period of such delay or failure to perform by seller, Buyer may purchase products from other sources and reduce its schedule to seller by such quantities without any liability.
- If request by buyer, seller shall within ten (10) days of such request provide adequate assurance that the delay shall not exceed thirty (30) days.
- If the delay lasts more than thirty (30) days or seller does not provide adequate assurance that the delay will cease within thirty (30) days, Buyer may immediately cancel this order without liability.

16. Compliance.

- Seller represents and warrants that in the performance of its obligations under this order, it shall comply with all applicable central, state and local laws, ordinance, rules, and regulations.
- Customs upon buyers request, seller will promptly provide buyer with a statement of origin for all products.
- Seller will at all time refrain from engaging in any illegal, unfair or deceptive trade practices or unethical business practices. Seller shall at its expense obtain any and all permits, licenses, authorizations, and/or certificates that's may be required in any jurisdiction or by any regulatory or administrative agency in connection with its activities hereunder. Seller shall adhere to Buyers rules and policies and shall comply with Buyers code of ethics and business conduct at all times.

17. Right to Audit.

- Buyer, CIWTPL and its customer shall have the right, at any reasonable time, to send its authorized representative to examine/ audit all of the seller's documents, material and facilities relating to seller's obligation/P.O. hereunder or relating to seller's charges to buyers same is applicable for TIER II supplier also.
- All records pertaining to Quality, cost, development and delivery relating to CIWTPL supplies must be retained and reproduced whenever required for a period of 3 years from date of supplies. CIWTPL reserves right of access by the organization, their customer and regulatory authorities to the applicable areas of all facilities, at any level of the supply chain, involve in the order and to all applicable records.

18. Replacement Parts.

- Seller shall, in the case of products requiring servicing, stock replacement parts sufficient to meet buyer's needs for 10 years after the date of discontinuance of product. Replacement parts will be made available to Buyer at competitive prices not exceeding those charged to other comparable customers of seller.

19. Miscellaneous.

- This order, together with any attachments, exhibits, manuals, or supplements specifically referenced herein, and any written, existing "AGREEMENT" or the like between Buyer and seller, constitutes the entire agreement between seller and buyer with respect with to the matter contained herein and supersedes all prior oral or written representation and agreements.
- No purported amendment, modification or waiver of any provision of the agreement shall be binding on Buyer unless set forth in a written document signed by an authorized representative of buyer.
- The failure of either party at any time to require performance by the other party of any provision of this order shall in on way affect the right to require such performance at any time thereafter, nor shall the waiver of either party of a breach of any provision of this order constitute a waiver of any succeeding breach of the same or any other provision.
- Seller may not assign or delegate its obligations under this order without buyer's prior written consent.
- Seller's covenants, representations and warranties hereunder shall survive any delivery, inspection, payment or acceptance and any completion, termination or cancellation of this order.